

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF GORSKIY AND OTHERS v. RUSSIA

(Applications nos. 78796/17 and 23 others –
see appended list)

JUDGMENT

STRASBOURG

7 September 2023

This judgment is final but it may be subject to editorial revision.



In the case of Gorskiy and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 6 July 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants or organisers of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and

5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of detention under the CAO; and *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised other complaints, including under Articles 5 and 6 of the Convention concerning other aspects of their deprivation of liberty and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints;

4. *Holds* that there has been a violation of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see the appended table);

6. Holds

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 7 September 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	78796/17 24/10/2017	**Yuriy Yevgenyevich GORSKIY** 1971	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally Moscow, 12/02/2017 Labour Day rally Moscow, 01/05/2017	Article 20.2 § 8 of CAO Article 20.2 § 8 of CAO and Article 19.3 § 1 of CAO	fine of RUB 200,000 3 days of detention fine of RUB 1,000	Moscow City Court 12/07/2017 Moscow City Court 05/05/2017 Moscow City Court 22/05/2017	Art. 5 (1) - unlawful detention - on 12/02/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in the case under Article 20.2 § 8 of CAO (final decision on 05/05/2017 by Moscow City Court), Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - - as regards the rally on 01/05/2017 - Art. 19.3 § 1 CAO and Art. 20.2 § 8 CAO; overlap of the facts constituting the basis for the applicant's prosecution and punishment in the second set of proceedings with substantially the same facts underlying his conviction in the first set of proceedings	7,800

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
2.	46724/18 17/09/2018	**Mariya Viktorovna MAKOVOZOVA** 1996	Vasin Vladimir Valeryevich Krasnoyarsk	Opposition rally Krasnoyarsk, 05/05/2018 Rally against the pension reform Krasnoyarsk, 09/09/2018	Article 20.2 § 2 of CAO Article 20.2 § 8 of CAO	3 days of detention 10 days of detention	Krasnoyarsk Regional Court 24/05/2018 Krasnoyarsk Regional Court 12/09/2018	Art. 5 (1) - unlawful detention – on 04/05/2018 and 06/09/2018 escorting to a police station for compiling offence reports in relation to the rallies planned for 05/05/2018 and 09/09/2018, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of a suspensive effect of an appeal against sentence of detention - the applicant started serving the sentences of administrative detention immediately after the conviction by the first-instance courts; the lodging of appeal or appeal proceedings do not offer suspensive effect.	5,000
3.	52950/18 30/10/2018	**Ilyas Akhmedovich MEKNASSI** 1997	Antokhin Yevgeniy Vyacheslavovich Moscow	Opposition rally Moscow, 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2018	Art. 5 (1) - unlawful detention – on 05/05/2018 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
4.	59032/18 10/12/2018	**Nikolay Viktorovich NESTEROV** 1999	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow, 26/03/2017	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 18/06/2018	Art. 5 (1) - unlawful detention - on 26/03/2017 escorting to a police station for compiling an offence report	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	22156/19 15/04/2019	**Veronika Nikolayevna NOVOZHENOVA** 1999	Zboroshenko Nikolay Sergeyevich Mytishchi	Protest rally Moscow, 06/10/2018	Article 19.3 § 1 of CAO and Article 20.2 § 6.1 of CAO	10 days of detention 12 days of detention	Moscow City Court 18/10/2018 Moscow City Court 22/10/2018	Art. 5 (1) - unlawful detention - on 16-17/10/2018 escorting to and detention in a police station in relation to an offence report compiled on 08/10/2018, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings	5,000
6.	64952/19 18/12/2019	**Vadim Sergeyevich BOYTSOV** 1980	Memorial Human Rights Centre Moscow	Rally against road tax "Platon" Moscow, 27/03/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/07/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
7.	1915/20 20/12/2019	**Sergey Vasilyevich SAPELNIKOV** 1961	Memorial Human Rights Centre Moscow	Rally against road tax "Platon" Moscow, 27/03/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
8.	2355/20 19/12/2019	**Antonina Vladimirovna PERSHUKOVA** 1964	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Rally against a waste-plant construction Pomodzino, 07/04/2019	Article 20.2 § 2 of CAO	fine of RUB 10,000	Supreme Court of Komi Republic 19/06/2019		3,500
9.	3032/20 23/12/2019	**Maksim Vasilyevich AVDEYEV** 1988	Memorial Human Rights Centre Moscow	Rally against road tax "Platon" Moscow, 27/03/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
10.	4175/20 23/12/2019	**Leonid Nikolayevich SOKOLOV** 1960	Memorial Human Rights Centre Moscow	Rally against road tax "Platon" Moscow, 27/03/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
11.	6024/20 11/01/2020	**Stanislav Vladimirovich GUSEV** 1969	Memorial Human Rights Centre Moscow	Rally against road tax "Platon" Moscow, 27/03/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/07/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
12.	6030/20 11/01/2020	**Pavel Vasilyevich LISICHKIN** 1958	Memorial Human Rights Centre Moscow	Rally against road tax "Platon" Moscow, 27/03/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/07/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
13.	15062/20 12/03/2020	**Ilya Aleksandrovich TKACH** 1987	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	17357/20 21/03/2020	**Leonid Vladimirovich MOYZHES** 1990	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Rally to support I. Golunov Moscow, 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 18/09/2019	Art. 5 (1) - unlawful detention - on 12/06/2019 escorting to a police station for compiling an offence report (it was compiled on 14/06/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	26239/20 22/06/2020	**Yevgeniy Georgiyevich BUYANIN** 1974	Memorial Human Rights Centre Moscow	Public assembly Ulan-Ude, 10/09/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Supreme Court of Buryatia Republic 21/10/2019		3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
16.	28139/20 26/06/2020	**Denis Dmitriyevich YURCHUK** 1993	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 22/11/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	28310/20 03/07/2020	**Yelena Vladimirovna IVANOVSKAYA** 1978	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 12,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	28312/20 03/07/2020	**Yevgeniy Markovich LISNEVSKIY** 1975	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 22/10/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	28777/20 03/07/2020	**Petr Aleksandrovich VOLKOV** 1981	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/10/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
20.	31644/20 09/07/2020	**Oksana Arturovna GUSEYNOVA** 1970 **Artem Leonidovich SAFONOV** 1992	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000 (Guseynova) fine of RUB 15,000 (Safonov)	Moscow City Court 10/10/2019 (Guseynova) 18/10/2019 (Safonov)	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting both applicants to a police station for compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in respect of both applicants	4,000 to each applicant
21.	31931/20 20/06/2020	**Vladimir Sergeyevich KHRABROV** 1995	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
22.	32048/20 23/07/2020	**Artem Eduardovich SHURYGIN** 1992	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 12/11/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
23.	38533/20 14/08/2020	**Leonid Leonidovich SHPAKOV** 1975	Yatsenko Irina Aleksandrovna Moscow	Rally to support I. Golunov Moscow, 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 14/11/2019	Art. 5 (1) - unlawful detention - on 12/06/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
24.	41336/20 19/08/2020	**Vladimir Olgerdovich SMIRNOV** 1982	Balog Natalya Andreyevna Krasnoyarsk	Rally for fair elections to Mosgorduma Moscow, 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/11/2019	Art. 5 (1) - unlawful detention - on 03/08/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.